

TENTATIVE RULING(S) FOR August 21, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2227230

Ramirez v. GM

TENTATIVE RULING(S):

On December 5, 2024, the parties reached a settlement via GM's formal 998 Offer, whereby GM agreed to pay Plaintiffs Ramirez \$75,000.00 plus prejudgment interest totaling \$90,287.67, which includes repurchasing the Subject Vehicle, paying a significant civil penalty, and paying attorney fees, costs, and expenses pursuant to a noticed motion (the Settlement). The parties further agreed that Plaintiffs were the prevailing party. (Walker Decl. ¶ 10, Exh. 2.) Neither party disputes Plaintiffs Ramirez's right to recover attorney fees under the Act.

Plaintiffs Ramirez now move to recover their attorney fees in the total amount of \$28,116.00, which consisted of actual billed fees in the amount of \$25,491.00 and \$2,625.00 in anticipated

fees to review GM's opposition, prepare a reply and appear for the hearing on this motion. GM opposes. Plaintiffs Ramirez replied.

Hourly Rate. In fixing the reasonable fees, the court must determine the reasonableness of the attorney's hourly rates. (*Cordero-Sacks v. Housing Authority of City of Los Angeles* (2011) 200 Cal.App.4th 1267, 1286.) Generally, a reasonable hourly rate is the prevailing rate in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095 (*PLCM*); *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.)

For this action, seven attorneys and five paralegals recorded time:

- Jessica Anvar (managing partner): \$595.00;
- Jordan G. Cohen (senior partner): \$560.00;
- Bobby C. Walker (associate attorney): \$440.00;
- Diana Rivero (senior associate attorney): \$525.00;
- Gabriel Eredia (associate attorney): \$435.00;
- Yuebai Ruby Gao (associate attorney): \$460.00;
- Ahmed Yousef (associate attorney): \$415.00;
- David Gomez (paralegal): \$215.00;
- Katherine Carreño (paralegal): \$215.00;
- Robert Aguilar (paralegal): \$215.00;
- Isabel Garcia (paralegal): \$215.00; and,
- Jorge Acebo (paralegal): \$215.00.

(Walker Decl. ¶¶ 11-18, Exh. 26.)

GM does not attack the reasonableness of the hourly rates charged. However, even if GM does not raise an issue with hourly rates, the hourly rates should be considered as to whether they are within the reasonable range. In the case of *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157, the Court discussed that the trial court should have applied local hourly attorney rates, i.e., the prevailing rate in the community for similar work, which it identified as consumer attorneys practicing in the local legal community.

Considering the qualifications and experiences of each attorney and paralegal, Plaintiffs' counsel's hourly rates for each attorney are a bit high for San Bernardino County. A reasonable amount for San Bernardino County based market rate reports as outlined by the Laffey Matrix and the United States Consumer Law Attorney Fee Survey Report would be attorney rates of between \$300.00-\$500.00 and paralegal rates between \$145.00-\$300.00 depending on the individual's experience.

Applying the reasonable rates here would uphold the rates above, except for the partners Jessica Anvar and Jordan G. Cohen and senior associate attorney Diana Rivero's hourly rates which should be reduced to \$500.00. As to the associate attorneys, Bobby C. Walker and Yuebai Ruby Gao have similar experience and have been attorneys for eight years admitted in 2018, and have worked in this area law for the majority of their time practicing and as such, their rates should be reduced to \$400.00. Finally with regard to Gabriel Eredia and Ahmed Yousef's hourly rates given their minimal amount of experience of 3-4 years, their hourly rates should be reduced to \$300.00.

This results in the following adjustments by attorney based upon the hours bill at the proper rate in this county:

- Jessica Anvar (managing partner): \$500.00 (billed 0.6 hours = \$300.00 for a reduction of \$57.00);
- Jordan G. Cohen (senior partner): \$500.00 (billed 1.4 hours = \$700.00 for a reduction of \$84.00);
- Bobby C. Walker (associate attorney): \$400.00 (billed 2.2 hours = \$880.00 for a reduction of \$88.00);
- Diana Rivero (associate attorney): \$500.00 (billed 36 hours = \$18,000.00 for a reduction of \$900.00);
- Gabriel Eredia (associate attorney): \$300.00 (billed 1.2 hours = \$360.00 for a reduction of \$162.00);

- Yuebai Ruby Gao (associate attorney): \$400.00 (billed 1.2 hours = \$480.00 for a reduction of \$72.00); and
- Ahmed Yousef (associate attorney): \$300.00 (billed 0.7 hours = \$210.00 for a reduction of \$80.50).

Therefore, the Court reduces Plaintiffs Fox's attorneys' fees in the amount of \$1,443.50.

Reasonable Hours. The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.) This is because a court must not blindly accept an attorney's reported hours but must carefully review the attorney's documented hours. (*Ketchum, supra*, 24 Cal.4th at p. 1132.)

The fees associated with a senior attorney reviewing another attorney's work, preparing internal memos, and engaging in internal conferences are not fees that should be passed onto the defense. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 250; *Premier Medical, supra*, 163 Cal.App.4th at p. 556; *Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 270, 278-279.)

Although attorney fees may include paralegal (or law clerk) fees (*Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312), it does not include secretary or receptionist fees. Secretarial tasks are not compensable. (*Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10; *Neil v. Commissioner of Social Sec.* (9th Cir. 2012) 495 Fed.Appx. 845, 847; *Mountjoy v. Bank of America, supra*, 245 Cal.App.4th at p. 270.)

GM disputes portions of Plaintiffs Ramirez's attorneys' and paralegals' billings and asserts that Plaintiffs Ramirez's attorneys' and paralegals' time entries reflect excessive, inefficient work. GM also asserts that the record demonstrates that Plaintiffs Ramirez's attorneys and paralegals engaged in conduct aimed at unnecessarily increasing the workload in this case.

1. GM's Alleged Template Reduction Requests:

GM argues that Plaintiffs' counsel's work concerning: (1) preparing complaint on November 17, December 1-2, 2022 (2.0 hours for \$706.00); (2) drafting discovery requests and PMQ deposition notice on October 16, 2023 (3.7 hours for \$1,849.50); (3) reviewing discovery

responses and preparation of templated meet-and-confer correspondences on November 8, 16-17, December 11-13, 20-21, 29, 2023, and January 9, 2024 (5.5 hours for \$2,608.50); (4) drafting fee motion and memorandum of costs December 8-9, 12, and 30, 2025, and January 30, 2026 (4.2 hours for \$1,692.00; and (5) anticipated time to review GM's opposition, prepare a reply and appear for the hearing on this motion are all billings related to template work and should be discounted for the template work.

While the Court is aware that in cases such as this, law firms do use templates, the problem with GM's argument is each document has to be properly reviewed and drafted to conform to the specific case facts. Based upon the Court's review, the billing is reasonable. Further, a prevailing buyer is entitled to attorney fees and costs found by the court to have been reasonably incurred by the buyer in the commencement and prosecution of the action. (Civ. Code, § 1794, subd. (d).) This includes the fees incurred in drafting and supporting post litigation fee motions. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 1002 ("when attorney fees are recoverable by statute, the reasonable attorney fees incurred in preparing the motion are also recoverable"); *Serrano v. Unruh* (1982) 32 Cal.3d 621, 638 (a party cannot litigate tenaciously and then be heard to complain about the time necessarily spent by the plaintiff in response).) Therefore, the Court *denies* these requested reductions.

2. GM's Request for Reduction for Excessive Communications with Clients:

Next GM argues that Plaintiffs' counsel's communication with their client was excessive and not fully necessary for this action. GM's argument on this point is not persuasive. Plaintiffs' counsel has an ethical duty to communicate with their client and update their client throughout the pendency of the litigation and 5.4 hours of communication with one's clients on a litigation that lasted over two years is not unreasonable. Therefore, the Court *denies* the reduction.

3. GM's Request for Reduction of Paralegal Fees:

GM argues that the 14.5 hours for \$3,117.50 billed by David Gomez, Katherine Carreño, Robert Aguilar, Isabel Garcia, and Jorge Acebo is for clerical work and thus not recoverable as attorney fees. For example, these paralegals billed for tasks such as sent to attorney for review, saved, served, filed, updated calendar, and receipt and review. Additionally, they routinely billed to

prepare documents that counsel had already billed to draft and was therefore duplicative and unnecessary.

GM's argument on this point is persuasive. After reviewing the billing entries by the paralegals, the Court grants the requested reduction in part and cuts Plaintiffs Ramirez's paralegals' billings by 11.6 hours at the hourly rate of \$215.00 for a total of \$2,494.00.

Based on the foregoing analysis, the Court awards Plaintiff the reduced lodestar fee of \$24,178.50 in attorney fees.